

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUWM044376: VENTURA COUNTY TAXPAYERS ASSOCIATION, INC. et al. vs
CITY OF OXNARD, et al.
05/08/2026 in Department 44
Motion for Protective Order**

Effective **January 5, 2026**, Judge Charmaine H. Buehner and all cases previously assigned to Department J4 at the Juvenile Justice Center in Oxnard transferred to Department 44, located at the Hall of Justice, 800 South Victoria Avenue, Ventura, California 93009.

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Respondent City of Oxnard’s (“City”) Motion for Protective Order

Tentative Ruling:

This motion was previously set for March 25, 2026, and continued to May 8, 2026. The parties’ joint statement of the parties, filed May 1, 2026, indicates that the administrative record has yet to be compiled. The Court continues City’s Motion to a date to be determined at the hearing on this matter, which will be 45-60 days after production of the administrative record.

Discussion

Petitioner Ventura County Taxpayers Association, Inc. (“Petitioner”) Request for Judicial Notice is granted as to Exhibits 1 and 2. (Evid. Code, § 452, subds. (b), (c), (h).)

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There is no dispute that the City’s action in approving the IUF was a quasi-legislative act, the review of which proceeds by traditional mandamus. (Motion at 11:16 – 13:24; Opp. at 11:23 – 12:5; see also *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 567 [“Courts have traditionally held that quasi-legislative actions must be challenged in traditional mandamus proceedings rather than in administrative mandamus proceedings even if the administrative agency was required by law to conduct a hearing and take evidence.”].)

There is also no dispute that Proposition 218 imposes an independent judgment standard of review, as opposed to the usual deferential abuse of discretion standard. (Motion at 12:7-10; Opp. at 13:22 – 14:8.) Further, there is no disagreement that in a traditional mandamus proceeding, judicial review is usually limited to a review of the administrative record. (Motion at 13:25 – 14:20; Opp. at 12:6 – 13:21.) This issue here is whether imposition of an independent judgment standard of review permits Petitioners to conduct discovery, with the City arguing it does not and Petitioners arguing that it does or at least should.

“The Civil Discovery Act applies in both a civil action and a special proceeding of a civil nature.” (*People v. Superior Court (Cheek)* (2001) 94 Cal.App.4th 980, 988; see also Code Civ. Proc., § 2016.020 [“ ‘Action’ includes a civil action and a special proceeding of a civil nature.”].) A writ of mandate is a special proceeding of a civil nature. (*Association for Los Angeles Deputy Sheriffs v. County of Los Angeles* (2023) 94 Cal.App.5th 764, 784; *City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 285-286 [holding that proceeding under the California Public Records Act is a “special proceeding” to which Discovery Act applies and stating, “Our courts have repeatedly concluded, however, that the discovery act applies to statutorily-enacted special proceedings that are silent with respect to discovery.”].)

When discovery has been propounded, the responding party may “promptly move for a protective order.” Any motion must be accompanied by a meet and confer declaration. (Code Civ. Proc., §§ 2030.090, subd. (a) [interrogatories], 2031.060, subd. (a) [requests for production of documents], and 2033.080, subd. (a) [requests for admission], 2016.040, subd. (a) [meet and confer requirement].) The protective order may direct that the issuing party does not need to answer or otherwise respond to the written discovery. (*Id.*, §§ 2025.420, subd. (b)(1), 2030.090, subd. (b)(1), 2031.060, subd. (b)(1), and 2033.080, subd. (b)(1).)

In *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, a CEQA case, the Supreme Court held that “extra-record evidence is generally not admissible to show that an agency ‘has not proceeded in a manner required by law’ in making a quasi-legislative decision. Such evidence is generally not admissible to challenge quasi-legislative decisions on non-CEQA grounds, and we see no reason to apply a different rule in CEQA cases.” (*Id.* at p. 565.) Thus, the general rule is that judicial review is confined to the administrative record, and extra-record evidence is ordinarily not admissible to challenge a quasi-legislative decision.

Petitioners initially make two arguments. First, none of the cases cited by the City hold “that discovery is unavailable when the Court exercises independent judgment rather than reviews whether an agency abused its discretion.” (Opp. at 14:9-10.) Second, they appear to argue that deference concerns are weaker or even not present in this case because of the different standard

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of review, as a result of which discovery, i.e., extra-record evidence, should be allowed. (Opp. at 12:6 – 15:22.) Petitioners rely on dicta discussing *Western States* in *Hill RHF Housing Partners, L.P. v. City of Los Angeles* (2021) 12 Cal.5th 458. (Opp. at 14:15 – 15:22.) While the Supreme Court’s discussion of *Western States* does appear to support Petitioners’ position, at the same time the court did not expressly hold that the independent judgment standard of review entitles a party to discovery. Petitioners thus frame the issue as one of determining the constitutionality of the City’s action, rather than whether an administrative decision is supported by substantial evidence. (Opp. at 15:23 – 16:7.)

The City responds that the standard of review affects how a court evaluates the record but does not entitle a party broad discovery. (Reply at 5:16-24.) The cases cited by the City—*Pomona Valley*, *Bixby*, and *Fukuda*—all involved writ proceedings under Code of Civil Procedure section 1094.5, so are not directly on point. But they do support the underlying principle that judicial review of quasi-legislative action is ordinarily confined to the record before the agency.

In sum, Petitioners’ argument is that less deference equates to entitlement to discovery. But Petitioners cite no authority holding that such a shift in the standard of review requires disregard of the evidentiary limitations otherwise applicable in traditional mandamus proceedings.

Petitioners also argue that the discovery seeks materials and information that would “never be part of an administrative record” and is relevant to its claims for declaratory and injunctive relief, and its claim for a tax reduction. (Opp. at 16:8 – 17:20.) The City responds that discovery violates separation of powers and the legislative privilege because it inquires into the mental processes or subjective motivations of official exercising quasi-legislative authority. (Reply at 7:2 – 9:23.) “It is fundamental that (1) the power to make laws is vested in the legislative department [citation] and (2) the courts cannot interfere with the legislative process.” (*City of Santa Cruz v. Superior Court* (1995) 40 Cal.App.4th 1146, 1150–1151 [internal citation omitted].) “Ancillary to this separation of powers deference is the proposition that a court may not inquire into the motives of the Legislature in making its laws.” (*Ibid.*)

The discovery at issue, after many requests have been withdrawn, seeks the following information and materials:

- Special interrogatories
 - Whether the City has transferred fees from one fund to another and, if so, at what intervals and in what amounts. (Nos. 1-3) If not, identify the names of the accounting system funds where IUF fees have been transferred. (No. 4)
 - An explanation as to who the City has spent IUF fees since the enactment of Ordinance No. 3043. (No. 5)
 - All all-facts interrogatory supporting the contention that IUF fees are not a “tax” within the meaning of the Constitution. (No. 16) All documents supporting the facts responsive to number 16. (No. 17)
- Requests for Admission
 - Admit that received IUF fees are first deposited in Fund 631. (No. 3)
 - Admit that the fees cannot be traced after they are transferred from Fund 631 to the General Fund. (No. 4)

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- General Form Interrogatories
 - Facts, documents, and witnesses supporting affirmative defenses. (No. 15.1)
 - Facts, documents, and witnesses supporting denial of requests for admission. (No. 17.1)
- Requests for Production of Documents
 - Communications between the City and Raftelis regarding IUF fees. (No. 5)
 - Communications between the City and Raftelis regarding the Bartle Wells Study. (No. 6)
 - Accounting journal entries, ledgers, and monthly expenditure reports reflecting the transfer of IUF fees from Fund 631 to another account since the enactment of Ordinance No. 3043. (No. 7)
 - Documents supporting the contention that the IUF fees are not a “tax” withing the meaning of the Constitution. (No. 9)
 - Documents identified in response to form interrogatories 15.1(c) and 17.1(d). (Nos. 14-15)
 - Documents identified in response to special interrogatory 17. (No. 19)

In making the argument regarding separation of powers and legislative privilege, the City specifically identifies requests for admission 1 and 2 and requests for production. The City also alleges that “Petitioners’ interrogatories likewise require the City to identify persons with knowledge of the underlying facts.” This would “predictably point to City officials involved in the enactment of Ordinance No. 3043 and operates as a predicate to seeking their depositions.” The city then identifies general form interrogatories 15.1 and 17.1. (Reply at 8:25 – 9:10.) As can be seen, requests for admission 1 and 2 and requests for production number 8 are no longer at issue, having been withdrawn. Although general form interrogatories 15.1 and 17.1 have not been withdrawn, they no longer have to be answered with regard to the specific requests identified as concerning by the City.

Of the requests that remain, some can arguably be considered as seeking thought processes. Further, some of the document requests may reveal documents that contain such thought processes. For this reason, the separation of powers and legislative privilege argument is persuasive with regard to some of the remaining requests.

On the other hand, some of the information sought will not likely be part of the administrative record.

The City’s opposing brief suggests that “Petitioners should allow the City to prepare and serve the administrative record before insisting that extra-record discovery is necessary or appropriate. The City has already committed to, and expressed to Petitioners a commitment to: (1) prepare a draft administrative record, provide it to Petitioners for review, and confer over any proposed additions; and (2) if, after reviewing the record, Petitioners believe that augmentation is necessary, the appropriate course is to seek augmentation – not to pursue broad civil discovery now.” (Motion at 15:11-16.) The Court finds the City’s idea is a reasonable solution to this issue. The Court will therefore continue the hearing on this matter to a date to be determined, but which will be 45-60 days after production of the administrative record in order to give the parties time to meet and confer further on the remaining requests once the proposed administrative record has

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been provided to Petitioners. The parties are thus ordered to meet and confer on the matter and to file a joint report on their meet and confer efforts at least 10 court days prior to the continued hearing date to apprise the Court of their meet and confer efforts. The Court will address unresolved matters at the continued hearing.

Counsel for the City is to give notice of the Court's ruling.